

## TENTATIVE RULING

**Case:**                      **Zhou v. Hotel Winters, LLC**  
                                 **Case No. CV2022-1963**

**Hearing Date:**        **July 24, 2026**                      **Department Eight**                      **1:30 p.m.**

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Plaintiff Xinyao Zhou’s motion for reconsideration and motion for leave to file fourth amended complaint are **STAYED**, pending resolution of plaintiff’s appeal, filed on June 25, 2026, Third District Court of Appeal Case No. C106663. (Code Civ. Proc., §§ 1008, subd. (a), 473, 576; Cal. Rules of Court, rule 3.1324.) As plaintiff’s motions involve matters embraced by the pending appeal, the Court does not have jurisdiction to rule on the motions. (Code Civ. Proc., § 916; *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 196-200; see also *OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141 [“A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.”], citation and brackets omitted.)

The Court sets a review hearing re stay for **October 16, 2026**, at 9:00 a.m. in Department Eight.

The notices of motion do not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

## TENTATIVE RULING

**Case:** **Zhou v. Hotel Winters, LLC**  
**Case No. CV2023-0312**

**Hearing Date:** **July 24, 2026** **Department Eight** **1:30 p.m.**

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Plaintiff Xinyao Zhou’s motion for leave to file third amended complaint is **GRANTED**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) First, plaintiff has satisfied the applicable procedural requirements. (Cal. Rules of Court, rule 3.1324; Zhou dec., ¶¶ 3-19, Exhibits A & B.) Second, defendant Hotel Winters, LLC has not established that it will be prejudiced by the proposed amendment, or the requested amendment is not warranted under Code of Civil Procedure sections 473(a)(1) and/or 576. (See *Leader v. Health Industries of America, Inc.* (2001) 89 Cal.App.4th 603, 613; see also *Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 486.) Finally, if defendant believes that plaintiff’s causes of action are not meritorious, then it may test the amended complaint’s “legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048.)

Plaintiff is directed to file the proposed third amended complaint, attached to her declaration, by **July 31, 2026**. (Zhou decl., ¶ 4, Exhibit B.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.